THE NEW STANDARD

ENFORCING ECONOMIC MERITOCRACY, MODERNIZING DIGITAL RIGHTS, AND ELEVATING WORKPLACE CONDITIONS WITHIN THE NFL

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Introduction: The Strategic Pivot from Protection to Growth

A. The Current Landscape: Stability Masking Stagnation

The National Football League stands at a critical economic inflection point. To any casual observer, the League appears to be healthier than ever, buoyed by the 2020 Collective Bargaining Agreement and media rights deals exceeding $110 billion over eleven years.[1] This façade of stability, however, masks a deepening structural stagnation that threatens the long-term value of the game for the athletes who play it. For decades, the NFL Players Association (NFLPA) has operated under a philosophy of "protectionism," where they negotiate to secure a fixed slice of a growing pie, while relying on the "rising tide" of national revenue to lift all boats.

This strategy is no longer sufficient, as we are operating a business in 2025 with a revenue-sharing model designed for the 1990s. The current economic structure has allowed for the bifurcation of the ownership class: while "Growth Owners" invest heavily to innovate and expand markets, a substantial number of "Profit-Taking Owners" rely entirely on national revenue sharing, effectively free-riding on the investments of their peers while suppressing the Salary Cap for every player in the league. As the Supreme Court noted in *American Needle, Inc. v. National Football League*, the NFL is not a single entity, but a collection of "substantial, independently owned, and independently managed business[es]" competing for labor and intellectual property.[2] Nevertheless, our current bargaining strategy treats them as a monolith, failing to exploit the natural competitive fissures between high-investment and low-investment franchises.

As a candidate for Executive Director, I submit that the NFLPA must pivot from a strategy of passive revenue participation to one of active Economic Meritocracy. We must stop merely fighting for a larger share of the existing revenue. Instead, we should implement structural reforms that force the ownership group and League management to maximize the value of the industry itself.

B. The Three Structural Failures of the 2020 CBA

The status quo of the 2020 CBA contains three specific structural failures that allow owners to extract value from players without fairly compensating them or any form of reciprocal investment.

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[1] *See NFL Collective Bargaining Agreement* (Mar. 15, 2020), https://perma.cc/L6Y6-EKMF [hereinafter *2020 CBA*]; John Ourand & Ben Fischer, *NFL finalizes TV rights deals for $10B per year*, SPORTS BUS. J. (Mar. 18, 2021), https://perma.cc/K7FZ-FHE5.

[2] *Am. Needle, Inc. v. Nat'l Football League*, 560 U.S. 183, 196 (2010).

1. The "Wild West" of Digital Rights

First, the current agreement fails to address the "Digital Athlete." Through the proliferation of wearable technology and biometric tracking (e.g., RFID tags, Whoop straps), players are generating a new, highly valuable asset class: their own biological data. Currently, the League monetizes this data through partnerships with betting operators and analytics firms, most notably through "Next Gen Stats" powered by Amazon Web Services, claiming it falls under the "game broadcast" copyright established in *Baltimore Orioles, Inc. v. Major League Baseball Players Ass'n*.[3] This interpretation is legally flawed and economically exploitative. Unlike public statistics, biometric data is private health information, yet the CBA leaves players with no control over its commercialization and no direct share of the revenue it generates.

2. The Workplace Equity Cap

Second, the Union has allowed a "two-tier" league to emerge regarding workplace conditions. As evidenced by the 2023 and 2024 NFLPA Team Report Cards, the disparity between franchises is stark.[4] A player drafted by the Minnesota Vikings enters a high-performance environment optimized for career longevity, while a player drafted by a low-investment franchise may face substandard medical staffing, charging for meals, and vermin-infested facilities. This is not merely a "management rights" issue, rather, it is a failure of the Union's duty to ensure equal standards of employment across the bargaining unit. The current lack of codified facility standards allows owners to treat player health and safety as a discretionary budget item rather than as a mandatory obligation.

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[3] *Balt. Orioles, Inc. v. Major League Baseball Players Ass'n*, 805 F.2d 663 (7th Cir. 1986) (holding that players' performances in telecasts of baseball games are works made for hire owned by the clubs); *see also Next Gen Stats: Powered by AWS*, NFL OPERATIONS, https://perma.cc/Z9HB-6TLX (last visited Nov. 30, 2025) (detailing the commercial use of real-time player tracking data for fan engagement and analytics).

[4] *E.g.*, *compare* NFL Players Ass'n, *Minnesota Vikings Report Card 2024* (Feb. 28, 2024), https://perma.cc/CF2E-QU8U (ranking the Vikings second overall and noting that 100% of players believe ownership is willing to invest), *with* NFL Players Ass'n, *Washington Commanders Report Card 2024* (Feb. 28, 2024), https://perma.cc/GER7-77U8 (ranking the Commanders last overall and citing "sewage leaks" as evidence of chronic underinvestment).

3. The Free-Rider Problem

Third, and perhaps most damaging, is the structural incentive for free riding. The Salary Cap is calculated based on "All Revenues" (AR), which includes a significant portion of local revenue generated by individual clubs.[5] When low-revenue clubs fail to invest in local marketing, sponsorship, or stadium upgrades, they drag down the total AR, thereby artificially suppressing the Salary Cap for all 32 teams.[6] Under the current system, an owner such as Mike Brown of the Cincinnati Bengals is financially incentivized to minimize local spending and live off the shared national revenue check, effectively taxing the earning potential of every player in the NFL.

C. The Candidate's Platform: Partnership, Meritocracy, and Enforcement

My platform for the Executive Director position is built on a simple premise: **The Union must align with the best owners to force the worst owners to compete.** This is not a declaration of war against the League; it is a business proposal for its modernization.

This paper outlines three specific strategic initiatives designed to correct these market failures:

> *1.* **The Digital & Player-Data Licensing Exchange**: A joint-venture subsidiary designed to centralize and monetize player biometric rights, distinguishing them from the public domain statistics protected in *C.B.C. Distribution & Marketing, Inc. v. Major League Baseball Advanced Media, L.P.*[7]
>
> 2. **The Facility & Working-Condition Investment Standard**: A codified "Standard of Care" amendment to Article 39, enforced by an escrow penalty mechanism that removes the financial-incentive for underinvestment.
>
> 3. **The Imputed Local Revenue Rule**: A reform to the Salary Cap calculation that imputes median local revenue to underperforming clubs, forcing them to either invest in their markets or sell equity to those who will.

By leveraging the credible threat of decertification, as established in *Brady v. National Football League*, we can fracture the ownership bloc,

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[5] *2020 CBA* art. 12, § 1(a).

[6] *See generally* Clay Moorhead, *Revenue Sharing and the Salary Cap in the NFL: Perfecting the Balance Between NFL Socialism and Unrestrained Free-Trade*, 8 VAND. J. ENT & TECH. L. 641 (2006) (arguing that shared revenue creates disincentives for local growth).

[7] *C.B.C. Distrib. & Mktg., Inc. v. Major League Baseball Advanced Media, L.P.*, 505 F.3d 818 (8th Cir. 2007).

isolating the free riders and building a coalition with high-revenue owners who share our interest in a growing, meritocratic league.[8] It is time to stop subsidizing stagnation and start enforcing the standard of a premier professional league.

Initiative 1: THE DIGITAL & PLAYER-DATA LICENSING EXCHANGE

D. The Problem: The Under-Monetization of the "Digital Athlete"

1. The Rise of Biometric Data (Whoop, AWS Next Gen Stats)

The modern NFL athlete is no longer merely a physical performer on a field; instead, he has become a continuously monitored source of proprietary biometric and performance data within an integrated digital infrastructure. Through the proliferation of wearable technology, ranging from radio-frequency identification (RFID) tags embedded in shoulder pads to wearable recovery straps, players are generating a constant, high-fidelity stream of biological intellectual property. This data is not limited to public statistics, such as yards gained or touchdowns scored. It also captures private physiological inputs, including real-time heart rate variability, sleep recovery scores, acceleration/deceleration loads, and G-force impact data.

Presently, the League monetizes this data through lucrative commercial partnerships. Most notably, the League currently partners with Amazon Web Services (AWS) to power "Next Gen Stats," a platform that processes real-time location and biometric data for broadcast and analytical use.[9] Furthermore, the League sells exclusive, low-latency data to sports betting operators to power in-game wagering. For example, through the League's exclusive partnership with Genius Sports,[10] major sportsbooks like DraftKings receive official, real-time data feeds that allow them to offer "micro-bets," such as wagering on the specific result of a current drive (e.g., "Touchdown," "Field Goal," "Punt") or the outcome of the very next play (e.g., "Run" vs. "Pass"), with negligible delay.[11] These markets

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[8] *See Brady v. Nat'l Football League*, 644 F.3d 661 (8th Cir. 2011).

[9] *See Next Gen Stats: Powered by AWS*, NFL OPERATIONS, https://perma.cc/Z9HB-6TLX (last visited Nov. 30, 2025).

[10] *See* Mike Mazzeo, *Genius Extends NFL Betting Data Deal At Least Five Years*, LEGAL SPORTS REP. (July 6, 2023), https://archive.is/tIwOw (last visited Nov. 30, 2025) (reporting that the NFL and Genius Sports extended their exclusive data partnership through 2028 to distribute official league date and low-latency video feeds to sportsbooks, specifically to power "micro-betting" markets).

[11] *See NFL Week 13 Betting Odds*, DRAFTKINGS SPORTSBOOK, https://perma.cc/A4AH-MH9T (last visited Nov. 30, 2025) (archiving a live snapshot of the DraftKings interface to demonstrate the availability of

rely entirely on the speed and accuracy of the biometric tracking data to settle wagers instantly. Yet, under the current economic model, the players, who are the biological sources of this valuable intellectual property, receive no direct revenue participation from its sale beyond the general AR sharing pool, which dilutes the value of their specific digital rights.

2. The Current Legal Void in Article 51, Section 14

The failure to properly monetize this asset stems from the conflicting language in Article 51, Section 14 of the 2020 CBA. This section grants the League the right to require players to wear sensors and explicitly allows the NFL to "use data concerning players' performance and movements collected from Sensors during NFL games commercially."[12] While the CBA mandates that revenue from such use be included in AR, it simultaneously acknowledges that "each individual player owns his personal data collected by Sensors."[13]

This creates a critical ambiguity, as the League claims ownership of "performance and movement" data (e.g., speed, distance), the players retain ownership of "personal data" (e.g., biometric health markers). As betting markets demand more granular biometric data (e.g., fatigue levels, heart rate), the League is effectively engaging in a "digital land grab," commercializing data that arguably falls under the player's retained ownership in Section 14(h) without bargaining for a distinct license or royalty structure.

E. The Solution: Creating the Digital & Player-Data Licensing Exchange

1. Corporate Structure and Governance: A Joint Venture Model

To correct this market failure and resolve the ambiguity of Article 51, the NFLPA and the NFL must establish a new, standalone commercial entity, tentatively titled the Digital & Player-Data Licensing Exchange ("The Exchange"). This entity will be structured as a joint venture subsidiary, distinct from NFL Media and NFL Ventures, with equity ownership divided equally between the National Football League and the NFL Players Association. The 50/50 equity split mirrors the successful model utilized by NFL Players Inc. for group licensing, but integrates the League as a partner to ensure

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granular "micro-bets," such as "Drive Result" and "Next Play" prop bets, which utilize real-time League data).

[12] *2020 CBA*, *supra* note 1, art. 51, § 14(b).

[13] *Id.* § 14(h).

exclusive access to the proprietary game-day data that are currently controlled by the clubs. Governance of The Exchange will be vested in a Board of Directors comprised of an equal number of representatives from the NFL and the NFLPA, with a neutral tie-breaking director appointed to resolve deadlocks on commercial strategy. This governance structure ensures that the Union has a structural check on the commercialization of its members' biological data, moving beyond the passive "consultation" rights currently afforded by the Joint Sensors Committee under Article 51.[14]

2. Licensing Mechanism: Addressing BIPA and CCPA Liability

The legal mechanism for populating The Exchange with valuable intellectual property will be a standardized Biometric Group Licensing Authorization ("Biometric GLA"). This instrument will function similarly to the existing Group Licensing Agreement used for trading cards and video games,[15] but will be specifically tailored to navigate the rigorous consent requirements of modern privacy statutes. Specifically, the Illinois Biometric Information Privacy Act (BIPA) prohibits private entities from collecting, capturing, or profiting from a person's biometric identifiers without a written release.[16]

Currently, the League's practice creates massive liability exposure because Article 51, Section 14 of the CBA mandates that players wear sensors but does not require the execution of a specific written release for the commercial use of that biometric data, merely requiring "advanced notice" to the Union.[17] Since the NFL hosts games at Soldier Field in Illinois, the League is subject to the Illinois Biometric Information Privacy Act (BIPA), which authorizes statutory damages of up to $5,000 for every intentional violation.[18] Under the Illinois

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[14] *See 2020 CBA*, *supra* note 1, art. 51, § 14(c) (establishing the Joint Sensors Committee to review and approve sensor usage).

[15] *Id.* art. 47, § 4 (defining "Group Player Licensing" as the use of six or more players' rights in connection with products including "trading cards" and "videogames," and recognizing the NFLPA's exclusive authority to act as agent for such licensing).

[16] 740 ILL. COMP. STAT. 14/15(b) (2008) (requiring a "written release" before a private entity may collect, capture, or purchase a biometric identifier).

[17] *Compare 2020 CBA*, *supra* note 1, art. 51, § 14(b) (granting the NFL the right to "require" players to wear sensors and to commercialize the data subject only to "providing advance notice to the NFLPA"), *with* 740 ILL. COMP. STAT. 14/15 (b)(3) (requiring a "written release" executed by the subject of the biometric identifier).

[18] *See* 740 ILL. COMP. STAT. 14/20 (2008) (authorizing a private right of

Supreme Court's recent ruling in *Cothron v. White Castle*, a separate violation of BIPA occurs each time biometric data is scanned or transmitted.[19] This could mean that a single game in Chicago could theoretically trigger millions of dollars in liability for the League, as plaintiffs need not prove any actual injury to recover those damages.[20] Similarly, the California Consumer Privacy Act (CCPA) grants residents the right to opt out of the sale of their personal data, which includes biometric information.[21]

F. Legal Analysis: Intellectual Property & Privacy

The League's primary counterargument to this proposal will be that it already owns all data generated during a game under existing copyright and labor law precedents. Specifically, they will rely on *Baltimore Orioles, Inc. v. Major League Baseball Players Ass'n* to claim ownership via the "work made for hire" doctrine,[22] and *C.B.C. Distribution & Marketing, Inc. v. Major League Baseball Advanced Media, L.P.* to argue that player data is public domain information protected under the First Amendment.[23] A legal analysis, however, demonstrates that biometric data is legally distinct from the assets at issue in those cases.

1. Distinguishing *Baltimore Orioles* (Copyright) from Biometrics

The League will likely cite *Baltimore Orioles* to argue that players are employees performing within the scope of their employment, thus, the product of that employment belongs to the employer.[24] In that case, the Seventh Circuit held that the telecasts of Major League Baseball games were "works made for hire" under the Copyright Act of 1976, and that the players' performances were part of that copyrighted work.[25] This precedent, while valid for video broadcasts, is inapplicable to biometric data because copyright law protects only

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action with statutory damages of $1,000 for each negligent violation and $5,000 for each intentional violation of the Act).

[19] *See Cothron v. White Castle Sys., Inc.*, 216 N.E.3d 918, 928-29 (Ill. 2023).

[20] *See Rosenbach v. Six Flags Entm't Corp.*, 129 N.E.3d 1197, 1207 (Ill. 2019) (holding that a technical failure to obtain written consent is sufficient to trigger liability without proof of actual harm).

[21] CAL. CIV. CODE § 1798.120 (West 2020).

[22] *Balt. Orioles*, 805 F.2d at 669-70.

[23] *C.B.C. Distrib.*, 505 F.3d at 823.

[24] *Balt. Orioles*, 805 F.2d at 670 (holding that players are employees and their performances in telecasts are works made for hire).

[25] *Id.* at 669-70.

"original works of authorship," such as an audiovisual broadcast,[26] and does not protect facts.[27]

Unlike a "performance" captured on video, which involves aesthetic choices by directors, cameramen, and the players themselves, a data stream of a heart rate is a mechanical recording of a physiological process.[28] A player's heart rate, sleep quality, hydration level, or acceleration speed are biological facts, not creative works of authorship.[29] As the Supreme Court held in *Feist Publications, Inc. v. Rural Telephone Service Co.*, raw data and facts are not copyrightable because they lack the requisite originality.[30]

Furthermore, the League cannot claim copyright ownership over this data even as a "factual compilation." While *Feist* acknowledges that copyright may be placed over compilations of fact, the protection only is extended to the "selection, coordination, or arrangement" of data if it displays "some minimal level of creativity."[31] The NFL's data collection fails this standard because it is exhaustive rather than selective. No creative judgment is exercised by the League in selecting what data to record; instead, it collects all biometric inputs from all players mechanically. As the Court noted in *Feist*, "sweat of the brow" or "industrious collection," which is the mere effort of gathering large amounts of data, does not confer copyright protection.[32] Therefore, the "work made for hire" doctrine cannot assign ownership of these biological facts to the League because they are not copyrightable subject matter in the first place. Furthermore, *Baltimore Orioles* turned on the fact that the telecasts were "fixed in a tangible medium" (i.e.,

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[26] *See* 17 U.S.C. § 102(a).

[27] *See Feist Publ'ns, Inc. v. Rural Tel. Serv. Co.*, 499 U.S. 340, at 344-45 (1991) (holding that facts are not copyrightable because they do not owe their origin to an act of authorship).

[28] *See generally Nat'l Basketball Ass'n v. Motorola, Inc.*, 105 F.3d 841, at 846 (2d Cir. 1997) (distinguishing between the copyrightable "broadcast" of a game and the uncopyrightable "underlying game" itself, noting that "athletic events are not 'authored' in any common sense of the word").

[29] *See Feist*, 499 U.S. at 347-48 (holding that raw data and facts lack the "modicum of creativity" required for copyright protection); *see also NBA*, 105 F.3d at 846 (holding that real-time statistical data from sporting events are uncopyrightable facts).

[30] *Feist*, 499 U.S. at 345.

[31] *Id.* at 348 (holding that factual compilations may possess originality if the choices as to "selection and arrangement" are made independently and entail a minimal degree of creativity).

[32] *Id.* at 359-60 (rejecting the "sweat of the brow" or "industrious collection" doctrine).

videotape) simultaneously with their transmission.[33] Biometric data is fundamentally different, as it is not a creative performance fixed by the employer, but physiological data generated by the employee's body. Asserting ownership over a worker's internal biological data under the guise of "work made for hire" would be an unprecedented expansion of labor law that courts are unlikely to support.

2. Applying *C.B.C. Distribution* (Right of Publicity vs. Privacy)

The League may also rely on *C.B.C. Distribution* to argue that it does not need player consent to monetize data because such data is protected under the First Amendment. In *C.B.C.*, the Eighth Circuit held that a fantasy sports producer had a First Amendment right to use MLB players' names and playing records (statistics) without a license, and that this right trumped the players' state-law Right of Publicity.[34] The court reasoned that the "recitation and discussion of factual data concerning the athletic performance . . . command a substantial public interest."[35] However, *C.B.C.* is distinguishable on the grounds of privacy. The statistics at issue in *C.B.C.*, such as home runs and batting averages, were already readily available in the public domain.[36] They were observable facts that any fan could record simply by watching the game.

Biometric data, by contrast, is non-public health information.[37] A fan in the stadium can see a quarterback throw a touchdown, which is a public statistic, but a fan cannot see the quarterback's heart rate spike to 170 bpm or know his sleep recovery score, which is private biometric data. Since biometric data reveals private health information that is not observable to the public, the players retain a privacy interest that was absent in *C.B.C. Distribution*. Courts generally balance the First Amendment against privacy rights differently than they do against the Right of Publicity.[38] Where the data

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[33] *Balt. Orioles,* 805 F.2d at 668 (citing 17 U.S.C. § 101).

[34] *C.B.C. Distrib.*, 505 F.3d at 823.

[35] *Id.* at 823-24 (quoting *Gionfriddo v. Major League Baseball*, 94 Cal. App. 4th 400, 411 (Cal. Ct. App. 2001)).

[36] *Id.* at 823 ("The information used in CBC's fantasy baseball games is all readily available in the public domain . . . .").

[37] *See C.B.C. Distrib.*, 505 F.3d at 823 (holding that the First Amendment protects the use of player statistics because they are "readily available in the public domain"); *cf. Gionfriddo v. Major League Baseball*, 94 Cal. App. 4th 400, at 411 (Cal. Ct. App. 1st Dist. 2001) (distinguishing between factual data that commands a "substantial public interest" and private information).

[38] *See Cardtoons, L.C. v. Major League Baseball Players Ass'n*, 95 F.3d 959, at 967 (10th Cir. 1996) (explaining that while the right of publicity is often

is private and medical in nature, the player's privacy interest outweighs the commercial speech rights of the League. Therefore, the First Amendment shield provided by *C.B.C.* does not grant the League a *carte blanche* to commercialize private health data without the specific consent mechanism proposed by the Exchange.

3. The Trap of *Effects Associates*: Exclusivity vs. Implied License

If the League cannot prove full ownership under *Baltimore Orioles*, they may attempt to argue that the players have granted an implied copyright license by them voluntarily wearing the sensors and participating in games and practices. In *Effects Associates, Inc. v. Cohen*, the Ninth Circuit found that when a creator produces a work at the request of another party and then hands it over, their conduct may create an "implied nonexclusive license" to use the work.[39] Provided that the creator intended for the work to be used, this precedent allows a party to use copyrighted material even without a written agreement.

However, relying on *Effects Associates* would result in a hollow victory for the League. Under the Copyright Act, the transfer of exclusive rights must exist in writing.[40] *Effects Associates* explicitly held that while specific conduct can create a license, it can only create a "nonexclusive" one, which in turn leaves the copyright owner free to license the same material to others.[41]

This distinction ends up being fatal to the League's commercial data strategy. The value that exists in NFL's data partnerships, such as those with Genius Sports or AWS, relies entirely on exclusivity, or the guarantee that the League is the only source of official data. If the NFL only holds an implied nonexclusive license under *Effects Associates*, players retain ownership of their biometric copyright and

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treated as a property right, privacy rights are personal, and noting that "courts have generally been more willing to allow the First Amendment to trump the right of publicity than the right of privacy" because privacy protects "human dignity" while publicity protects commercial value); *see also Gionfriddo*, 94 Cal. App. 4th at 410 (citing *Cardtoons* for the proposition that non-economic interests like privacy are more directly served by rights of privacy than publicity rights).

[39] *Effects Assocs., Inc. v. Cohen*, 908 F.2d 555, at 558 (9th Cir. 1990) (holding that the special effects company granted an implied nonexclusive license to a filmmaker by creating and delivering footage at the filmmaker's request).

[40] *See* 17 U.S.C. § 204(a); *see also Effects Assocs.*, 908 F.2d at 557 (noting that the Copyright Act invalidates a purported transfer of ownership unless it is in writing).

[41] *Effects Assocs.*, 908 F.2d at 559 (concluding that plaintiff retained the right to license or sell whatever rights remained in the special effects footage to others as the implied license to defendant was nonexclusive).

the right to license that same data to third-party competitors.[42]

4. GDPR/CCPA Compliance as a Feature, Not a Bug

The League's current data practices face existential threats from a rapidly evolving privacy landscape that treats biometric data as sensitive personal information requiring affirmative consent. The commercial sale of unconsented biometric data exposes the League to massive liability under statutes such as the General Data Protection Regulation (GDPR) in Europe and the California Consumer Privacy Act (CCPA). Rather than viewing these regulations as hurdles, the NFLPA proposes leveraging compliance as a strategic asset. By forming The Exchange and securing union-backed individual consent, the NFL creates a compliant legal framework for data monetization, converting a major liability risk into a secure, premium asset.

The GDPR classifies biometric data used for identification purposes as "special category data," the processing of which is prohibited unless the data subject has given "explicit consent."[43] As the NFL expands its international footprint with games in London, Munich, and Frankfurt, the collection and commercial transmission of player biometrics to global betting partners without explicit, opt-in consent invites regulatory scrutiny and significant administrative fines (up to 4% of global annual turnover).[44] The current system, which relies on broad employment waivers in the standard player contract, is legally insufficient under GDPR standards that require consent to be specific, informed, and freely given—a standard difficult to meet in an employer-employee relationship where there is an inherent imbalance of power.[45] The Exchange resolves this by

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[42] *See 2020 CBA*, *supra* note 1, art. 51, § 14(h) (explicitly stating that "each individual player owns his personal data collected by Sensors").

[43] *See Regulation (EU) 2016/679* of the European Parliament and of the Council of 27 April 2016 on the Protection of Natural Persons with Regard to the Processing of Personal Data and on the Free Movement of Such Data, and Repealing Directive 95/46/EC (General Data Protection Regulation), art. 9(1)-(2)(a), 2016 O.J. (L 119) 1, at 38 (prohibiting the processing of biometric data for the purpose of uniquely identifying a natural person unless the data subject has given explicit consent).

[44] *Id.* art. 83(5) (authorizing administrative fines of up to 4% of global annual turnover); *Data Protection Act 2018*, c. 12, § 3(10), art. 83 (UK) (retaining the same penalty framework post-Brexit).

[45] *See* European Data Protection Board, *Guidelines 05/2020 on Consent under Regulation 2016/679*, Version 1.1, at 7 (May 4, 2020) (stating that consent is unlikely to be valid in an employment relationship due to the imbalance of power).

administering a granular Biometric Group Licensing Authorization where players specifically authorize the commercial use of their biometric data, thereby transforming the League's data feed from a regulatory liability into a "GDPR-certified" product.

The California Consumer Privacy Act (CCPA), similar to the BIPA,[46] grants consumers the right to opt out of the sale or sharing of their personal information.[47] Crucially, the statute explicitly defines "biometric information" as a category of "sensitive personal information" subject to heightened protection.[48] Current NFL practices, which arguably involve the "sale" of player data to third parties such as Genius Sports without a clear opt-out mechanism or explicit opt-in for secondary commercial use, create a vulnerability to class-action litigation and regulatory enforcement. By centralizing data licensing through The Exchange, the NFLPA provides a single clearinghouse that manages consent at the source. This structure insulates the League and its partners from "do not sell" requests because the data entering the commercial market has been cleared for sale by the data subject themselves.

G. Strategic Persuasion: The "Fragmentation Threat"

Ownership approval for The Exchange will require a shift in framing—where rather than being viewed as a labor concession by owners, the Union must push it as a monopoly protection strategy for the League and the owners. The owners must understand that the greatest threat to their data revenue is not the Union's demand for a share, but the market becoming fragmented. Currently, the NFL sells "league-wide" exclusive data rights to partners like Genius Sports.[49] This exclusivity commands a premium price as it guarantees a complete dataset of every player in every game. Without the existence of a centralized Exchange that is able to bind players to the licensing structure of the League, top-tier stars will inevitably come to the conclusion that they can sign exclusive, direct data deals with third-party betting or fitness companies, bypassing the League entirely.[50]

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[46] *See supra* Initiative 1(B)(2) (detailing the consent, written-release, and per-scan liability requirements under BIPA and explaining their parallels to the CCPA's restrictions on the sale of biometric information).

[47] CAL. CIV. CODE § 1798.120(a) (West 2020).

[48] *Id.* § 1798.140(ae)(1) (defining "sensitive personal information" to include biometric data processed for the purpose of uniquely identifying a consumer).

[49] *See supra* note 10 and accompanying text (detailing the League's exclusive data distribution agreement with Genius Sports).

[50] *See 2020 CBA*, *supra* note 1, art. 51, § 14(h) (explicitly retaining player

1. Why Owners Will Buy In: Preventing Third-Party Cannibalization

The Supreme Court wrote in *American Needle* that the 32 NFL teams are distinct economic actors capable of competing with one another in the market for intellectual property.[51] The same logic applies to individual players. For example, imagine a scenario where a star quarterback signs an exclusive deal with a sportsbook to stream his real-time heart rate and recovery scores only to their app during games. Seeing as the CBA explicitly acknowledges that players retain ownership of their "personal data,"[52] the League would face a significant challenge if it attempted to stop him.

Let's say that following this quarterback signing with one sportsbook, ten other star players followed suit with different betting operators. These deals would result in the value of the NFL's "exclusive" league-wide data package plummeting, as it would lack some of the most valuable data points. The risk of "cannibalization" is not just a theory. Legal scholars have noted that the tension currently present between league-mandated data collection and individual rights could lead to athletes asserting their individual commercial rights over their biometric data.[53] The creation of The Exchange offers the owners an opportunity to solve this risk. We would effectively recreate the "league-wide" bundle that the League sells to Amazon and Genius Sports by centralizing these rights through the Union. The owners would maintain control over the aggregated dataset, which protects their ability to command premium pricing, while players receive their fair share.

2. Why Management Will Buy In: Centralized Liability Control

For the League Office, The Exchange is able to solve the privacy litigation nightmare outlined in Section C. As wearable technology continues to evolve, the line between "performance data" and "HIPAA-protected medical records" continues to become more blurry. If the League continues to sell this agreement without a formal

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ownership of "personal data collected by Sensors"); *see also* Ryan M. Holz, *The Next Frontier in Sports: Legal Ramifications of Biometric Data and Virtual Reality Innovation*, PROSKAUER ROSE LLP (Sept. 30, 2019), https://perma.cc/VF3D-GE27 (last visited Dec. 3, 2025) (discussing the unresolved legal tension that remains between league-mandated data collection and player privacy rights, noting that players may assert independent commercial rights over their own biometric outputs).

[51] *See Am. Needle*, 560 U.S. at 196-67.

[52] *2020 CBA*, *supra* note 1, art. 51, § 14(h).

[53] Holz, *supra* note 45.

agreement established, they invite class-action lawsuits alleging privacy violations under BIPA and CCPA. Through the partnership with the NFLPA and the establishment of The Exchange, the League is able to shift the burden of obtaining consent to the Union. We, as the Union, become the guarantors of the data rights, which in turn insulates the League from liability while unlocking a new, clean revenue stream. The Exchange transforms a legal liability into a commercially viable asset.

Initiative 2: THE FACILITY & WORKING-CONDITION INVESTMENT STANDARD

A. The Problem: Disparity as a Competitive Distortion

1. Evidence from the 2023-2024 NFLPA Report Cards

The National Football League markets itself as a pillar of elite professionalism, yet behind the shield exists a broken reality where workplace standards often vary wildly depending on the whim and wallet of individual owners. This disparity was laid bare by the 2023 and 2024 NFLPA Team Report Cards, which analyzed survey data from over 1,700 active players to grade clubs from A to F on their treatment of players and families, as well as nutrition and facilities.

The results exposed a "two-tier" league. At the top, franchises like the Minnesota Vikings and the Miami Dolphins consistently receive "A+" grades, providing state-of-the-art recovery technology, fully-staffed nutrition programs, and comprehensive family support.[54] However, at the bottom, players face conditions comparable to minor league operations.[55] For instance, the Arizona Cardinals received an "F-" for their treatment of families and an "F" for nutrition in the 2023 survey, with players explaining that they were the only team in the league charged for dinner at the team facility.[56] In the Cincinnati Bengals's 2024 Report card, it was noted that half the showers in their

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[54] *See* NFL Players Ass'n, *Minnesota Vikings Report Card 2024*, *supra* note 4 (ranking the Vikings second overall); NFL Players Ass'n, *Miami Dolphins Report Card 2024* (Feb. 28, 2024), https://perma.cc/6DYE-6ULV (last visited Dec. 16, 2025) (ranking the Dolphins first overall).

[55] *See generally* NFL Players Ass'n, *2024 NFL Player Team Report Cards* (Feb. 28, 2024), https://perma.cc/WG36-PGBJ (last visited Dec. 15, 2025) (providing a comprehensive overview of club grades and highlighting significant disparities in facility standards).

[56] *See* NFL Players Ass'n, *Arizona Cardinals Report Card 2023* (Mar. 1, 2023), https://perma.cc/DD5S-9CW4 (last visited Dec. 15, 2025) (noting that players reported salary deductions for dinner from the team at the practice facility).

locker room do not "function properly, lacking either warm water or sufficient water pressure[,]" and that the team would close their cafeteria on off-days, which then forces players to find their own meals during the season.[57] The Washington Commanders were flagged for multiple "sewage leaks" within their locker rooms, as well as only 34% of players asked feeling as though "they have enough full-time physical therapists."[58]

These are not mere inconveniences; rather, they are gross deviations from the professional standard that is expected of a multi-billion dollar enterprise. When a player on one team has access to hyperbaric chambers, a full-time physical therapist, and a team of dieticians, while his opponent is billed for a boxed lunch/dinner and showers in cold water, an unequal playing field exists.

2. Impact on Career Longevity and Competitive Balance

The disparities revealed by the Report Cards show a material distortion of the League's competitive landscape. While the CBA strictly regulates player compensation through the Salary Cap in an effort to ensure parity in acquiring talent, the League lacks a "Workplace Equity Cap" regarding talent preservation.[59]

High-investment franchises are able to leverage facility spending to circumvent the spirit, if not the letter, of the competitive balance aimed for by the Salary Cap. When a franchise purchases, and subsequently provides, state-of-the-art recovery technology (e.g., cryotherapy, hyperbaric chambers) and comprehensive nutrition plans at no cost to the player, they are effectively giving additional compensation that does not count towards the cap. Conversely, players rostered on a "low-investment" team must either pay out-of-pocket for these recovery services or forgo them entirely. This effectively reduces their net income and physical readiness for the next game. As the Supreme Court noted in *American Needle*, the teams are "separate economic actors pursuing separate economic interests"

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[57] *See* NFL Players Ass'n, *Cincinnati Bengals Report Card 2024* (Feb. 28, 2024), https://perma.cc/E65X-GGAX (last visited Dec. 15, 2025) (ranking the Bengals 26th overall and noting the lack of water pressure and heat in showers, as well as cafeteria closures).

[58] *See* NFL Players Ass'n, *Washington Commanders Report Card 2024*, *supra* note 4 (ranking the Commanders last overall, citing "issues with cleanliness" and "sewage leaks").

[59] *See 2020 CBA*, *supra* note 1, art. 13; *see also* Moorhead, *supra* note 6, at 670 (noting the salary cap was "meant to help level the playing field"); *Am. Needle*, 560 U.S. at 204 (recognizing the "legitimate and important" interest in maintaining competitive balance).

that compete for talent.[60] Currently, this competition is distorted because low-investment owners can "free-ride" on the League's overall revenue, while in turn refusing to invest in the infrastructure required to maintain the product: players at an elite level.

This disparity disadvantages players drafted by or signed to low-investment organizations. When low-revenue teams fail to reinvest in their facilities, they are not merely saving money, they are inherently also extracting physical value from their players without providing the necessary maintenance to sustain that value. The Union, by tolerating substandard working conditions to continue, has allowed a system where a player's career expectancy, and thus his lifetime earnings, can be artificially shortened simply by the virtue of the team that he is employed by or is signed to. Overall, this undermines the fundamental premise of the draft and free agency systems, which assume that all franchises are viable, professional destinations that are capable of supporting elite athletic performance.

B. The Solution: Codified Standards & The Escrow Remedy

To rectify the inequalities of the "two-tier" league, the NFLPA must move beyond public shaming via Reports Cards and negotiate enforceable facility standards. This solution requires two distinct mechanisms: the codification of a "Standard of Care" within the CBA and the implementation of a financial remedy that makes underinvestment more costly than modernization.

1. Article 39 Amendment: "The Standard of Care"

Currently, Article 39 of the CBA ("Players' Rights to Medical Care and Treatment") primarily governs the credentials of medical staff, the Emergency Action Plan, and specific medical protocols.[61] While the Accountability and Care Committee is tasked with conducting an annual review of "Club rehabilitation equipment, facilities and modalities,"[62] the CBA lacks mandatory minimum standards for non-medical working conditions, such as nutrition, locker room hygiene, and family support facilities.

The Union must propose an amendment to Article 39 that establishes a "Facility & Working-Condition Investment Standard." This amendment would create a mandate which requires that every franchise meet specific, objective criteria derived from the top quartile of the NFLPA Team Report Cards. These standards would include:

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[60] *Am. Needle*, 560 U.S. at 195.

[61] *See 2020 CBA*, *supra* note 1, art. 39, §§ 1-4.

[62] *Id.* at art. 39, § 5(c)(x).

- **Nutrition**: A mandate which would provide three high-quality meals per day during the season at no cost to the player, eliminating the practice currently utilized by specific teams which deduct meal costs from player pay.
- **Recovery Infrastructure**: A mandatory provision of functioning saunas, steam rooms, and cold plunges in all team facilities, ensuring parity with the standards set by high-investment clubs.
- **Hygiene and Capacity**: A minimum square footage requirement would be established for locker rooms of each team, as well as a mandatory ratio of showers and toilets to players to prevent the sanitary failures observed in low-investment clubs.

2. The Enforcement Mechanism: Corrective Spend vs. Cash Forfeiture

Rules without remedies result in them existing as suggestions rather than as rules. To ensure that compliance occurs, the NFLPA must implement an enforcement mechanism that directly targets the "profit-taking" owner's bottom line. The proposal utilizes a "Corrective Spend" model backed by an "Escrow Remedy."

Under this system, the NFLPA and NFL would conduct joint annual audits of all club facilities. If a club falls below the Investment Standard agreed upon by the two organizations, they are issued a notice of deficiency and are given a remedy period to allocate funds for specific improvements (the "Corrective Spend").

If the Club then refuses to make the necessary capital improvements within this remedy period, then the "Escrow Remedy" is triggered. In this situation, the Club would be required to forfeit a cash amount equal to the cost of the unperformed upgrades plus a punitive multiplier. This forfeited cash would not revert to the League; instead, it would be deposited into an escrow account and distributed directly to the players on that Club's active roster as a "Substandard Condition Bonus."

Effectively, this mechanism would align the ownership group's incentives. A rational owner will choose to invest $5 million in a new weight room, which is an asset that directly improves team performance and franchise value, rather than being required to pay $7 million in cash directly to players for no return on investment. By making modernization less expensive than underinvestment, the Union is able to eliminate the free-rider advantage.

C. *Legal Analysis: Mandatory Subjects of Bargaining & The Ford Doctrine*

To implement the Facility & Working-Condition Investment Standard, the NFLPA has to firmly establish that the quality of club facilities is not merely a matter that an owner has discretion over, but instead, is a mandatory subject of bargaining under the National Labor Relations Act (NLRA). The League will likely attempt to shield these deficiencies behind the defense of "management rights," arguing that capital expenditures on facilities are core entrepreneurial decisions. However, the explicit text of the NLRA and Supreme Court precedent provide the Union with a dispositive counterargument to these claims.

1. The Statutory Duty to Bargain

The League's obligation to negotiate facility standards is grounded in Section 8(d) of the NLRA, which states that employers and union representatives "meet at reasonable times and confer in good faith with respect to wages, hours, and other terms and conditions of employment."[63] Under Section 8(a)(5) of the Act, a refusal to negotiate on these matters constitutes an unfair labor practice.[64] The Supreme Court has clarified that the legislative intent of these provisions was to ensure that employers and employees "work together to establish mutually satisfactory conditions" and to channel disputes into "constructive, open discussions."[65] Furthermore, an employer's refusal to negotiate in good faith as to any subject which falls under Section 8(d) violates the Act, even if the employer is acting in good faith regarding other matters.[66]

2. Facilities as "Terms and Conditions of Employment"

The legal battleground between the League and the Union will be over whether facility investments, such as turf quality, locker room hygiene, and recovery technology, qualify as "terms and conditions of employment." Under the doctrine established in *Ford Motor Co. v. NLRB*, these matters fall squarely within the mandatory scope of bargaining. In *Ford*, the Court ruled that in-plant food prices and services were mandatory subjects because they were "plainly

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[63] 29 U.S.C. § 158(d).

[64] *Id.* § 158(a)(5); *see also NLRB v. Katz*, 369 U.S. 736, at 743 (1962) (finding that a refusal to negotiate on mandatory subjects violates § 8(a)(5)).

[65] *Ford Motor Co. v. N.L.R.B.*, 441 U.S. 488, at 499 (1979) (quoting *H.K. Porter Co. v. NLRB*, 397 U.S. 99, 103 (1970)).

[66] *Katz*, 369 U.S. at 743.

germane to the 'working environment'."[67] The Court reasoned that conditions that an employee works under are "matters of deep concern to workers" and should be funneled into collective bargaining in order to avoid any industrial strife.[68]

If the price of a cafeteria sandwich is "plainly germane" to the working environment of a factory employee, then the safety of a playing surface and the quality of medical rehabilitation facilities are undeniably germane to the working environment of a professional athlete. Federal courts continue to apply this "germane" test to expand the scope of bargaining. For example, the Seventh Circuit has held that even the installation of surveillance cameras is a mandatory subject of bargaining because it is "plainly germane to the 'working environment'" and is analogous to physical examinations and drug testing.[69]

3. Refuting "Management Rights" Defenses

The League might counter that decisions regarding facility upgrades often involve capital investment, and therefore are "managerial decisions, which lie at the core of entrepreneurial control," effectively exempting them from bargaining.[70] The Union must refute this claim by distinguishing the nature of the investment.

The "entrepreneurial control" exception applies only to decisions that are fundamental to the "running of a profitable business," such as a decision to shut down part of a business for economic reasons.[71] It does not apply to the physical infrastructure used by employees to perform their duties. If the benefit to labor-management relations "outweighs the burden placed on the conduct of the business," then bargaining over management decisions that have a substantial impact on the continued availability of employment should be required.[72] Requiring an NFL club to invest in a sauna or a functional locker room does not usurp the owner's ability to set ticket prices, choose a head coach, or their control in marketing strategies. Instead, it regulates the "physical dimension of one's working environment," which the Supreme Court has explicitly protected as a mandatory subject of

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[67] *Ford Motor Co.*, 441 U.S. at 498.

[68] *Id.*

[69] *Nat'l Steel Corp v. NLRB*, 324 F.3d 928, at 932 (7th Cir. 2003) (quoting *Ford Motor Co.*, 441 U.S. at 498).

[70] *Ford Motor Co.*, 441 U.S. at 498 (quoting *Fibreboard Paper Prods. Corp. v. N.L.R.B.*, 379 U.S. 203, 223 (1964) (Stewart, J., concurring)).

[71] *First Nat'l Maint. Corp. v. NLRB*, 452 U.S. 666, at 677 (1981).

[72] *Id.* at 679.

bargaining.[73]

D. Strategic Persuasion: Asset Protection

In order to achieve the Facility & Working-Condition Investment Standard, the Union has to fundamentally reframe how negotiations are handled. Instead of presenting the standard as a labor cost that opposes ownership interests, the NFLPA must present it as a mechanism to enforce competitive equity amongst all clubs. By leveraging the economic tension between high-investment franchises and low-investment franchises, the Union can build a coalition of owners that would support codifying professional standards, eliminating the advantage currently enjoyed by clubs that underinvest in player safety.

1. Pitching to the "High-Investment" Owners: Eliminating Competitive Disadvantage

The primary political obstacle to this initiative is the bloc of owners that minimize overhead in order to maximize profit. However, these owners are natural adversaries of the "Growth Owners," which invest heavily in state-of-the-art facilities to attract and retain talent.[74] As noted in law review articles that discuss economics in the NFL, the League's collective structure creates a "free rider" problem where certain teams rely on national revenue sharing while refusing to invest in local growth or infrastructure.[75] Currently, high-investment owners effectively subsidize the League's labor stability, as they spend millions on recovery technology and nutrition that extend player careers, while low-investment teams extract physical value from their players without a corresponding investment in maintenance.

The Supreme Court in *American Needle, Inc. v. NFL* that NFL clubs are "separate economic clubs pursuing separate economic interests" that compete with one another for talent.[76] This competition becomes distorted when low-investment clubs begin to cut corners on medical staffing and facility conditions. By codifying a facility investment floor, the Union aligns itself with the high-investment owners, which

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[73] *Ford Motor Co.*, 441 U.S. at 494 (quoting *Ford Motor Co. v. N.L.R.B.*, 571 F.2d 993, 1000 (7th Cir. 1978)).

[74] *See* Moorhead, *supra* note 6, at 642-43 (distinguishing between owners that promote the "League Think" philosophy and those that prioritize individual profit).

[75] *Id.* at 660 (describing how the emergence of unshared local revenue has eroded the collective mentality, encouraging teams to minimize costs while relying on shared revenue).

[76] *Am. Needle*, 560 U.S. at 196-97.

ensures that all clubs compete based on management skill and roster construction, rather than on who can minimize operating costs at the expense of player health.

2. Pitching to the League: Brand Consistency and Risk Management

For the League Office, the argument becomes one of brand consistency and a reduction in liability. The NFL frequently markets itself as a premium entertainment product, and in doing so utilizes player images and footage to promote the "integrity and good character" of the game.[77] But by allowing franchises to operate with substandard conditions, such as charging players for meals or failing to provide sanitary locker rooms, this brand positioning is undermined and exposes the League to reputational risk.

Additionally, mandating facility standards acts as a liability shield. Under the *Ford* doctrine, conditions such as food service and physical environments are mandatory subjects of bargaining since they are "plainly germane" to the working environment.[78] By proactively codifying these standards in Article 39, the League reduces the risk of grievances or litigation being filed in the future that alleges negligence in player care. Having a mechanism that enforces corrective spending ensures that rational owners will choose to invest in their own assets, or facilities, thereby modernizing the League's infrastructure without requiring a work stoppage.

Initiative 3: THE IMPUTED LOCAL REVENUE RULE

A. The Problem: Structural Incentives for Free Riding

The current economic structure of the NFL creates a perverse incentive for certain franchises to commercially underperform, which effectively then taxes the earning potential of every player in the League. Under the 2020 CBA, the Salary Cap is determined by a formula based on AR, which aggregates both national revenue (shared equally among all 32 clubs) and local revenue (from tickets, concessions, and local corporate sponsorships).[79] Since the Salary Cap

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[77] *See Dryer v. Nat'l Football League*, 689 F. Supp. 2d 1113, at 1120 (D. Minn. 2010) (noting the NFL's argument that its promotional films are "purely positive deceptions" designed to promote the brand).

[78] *Ford Motor Co.*, 441 U.S. at 498.

[79] *See 2020 CBA*, *supra* note 1, art. 12, § 1(a)(i) (defining "All Revenues" to include "aggregate revenues received . . . from all sources . . . including, without limitation . . . [r]egular season, preseason, and postseason gate

is calculated based on the aggregate revenue of all 32 clubs, a franchise that fails to maximize its local revenue ends up dragging down the Salary Cap for the entire League.

1. The Erosion of "League-Think" and the Rise of Local Revenue

Historically, the League operated under a philosophy of "League Think," championed by Commissioner Pete Rozelle, in which owners would prioritize the collective financial health of the League over individual franchise profit.[80] This model relied on the equal sharing of television revenues in order to maintain competitive parity.[81] However, the landscape shifted significantly in the 1990s as owners began to exploit unshared "local revenue" streams[82] to gain competitive advantages.[83]

The legal turning point occurred when Dallas Cowboys owner Jerry Jones successfully challenged the League's exclusive control over club marketing, making the argument that individual owners should be allowed to maximize their licensing revenues instead of settling for a cut of the League's shared pie.[84] This shift did allow high-investment owners to generate massive local revenue, however, it began to expose a flaw in the revenue-sharing model, where it allowed risk-averse owners to stop investing. As noted in economic studies of the NFL, even though revenue sharing intends to balance competition, it mitigates the incentive for profit-maximizing owners to invest in talent on the team or their facilities because they are able to rely on the shared revenue generated by other teams.[85]

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receipts").

[80] *Moorhead*, *supra* note 6, at 642.

[81] *Id.* at 647 (stating that the "League Think" philosophy began in the early 1960s to stabilize competitive balance).

[82] This could include luxury boxes, stadium naming rights, local sponsorships, etc.

[83] *See* William J. Hoffman, *Dallas' Head Cowboy Emerges Victorious in a Licensing Showdown with the N.F.L.*, 4 SPORTS LAW J. 255, at 258 (1997) (discussing how the NFL feared that individual marketing deals would endanger the stability of the League as a whole and its revenue sharing model).

[84] *Id.* at 276.

[85] *See* Scott E. Atkinson, et al., *Revenue Sharing as an Incentive in an Agency Problem: An Example from the National Football League*, 19 RAND J. ECON. 27, at 27-28 (1988) (finding that while revenue sharing can be an effective incentive mechanism, its impact is often mitigated when owners behave as profit maximizers instead of win maximizers).

2. The "Efficiency Subsidy" and Market Failure

This theoretical flaw that was discussed has now metastasized into a concrete market failure. The League's economics would appear robust to any casual observer, having generated a record-breaking sum greater than $23 billion in total revenue for the 2024 fiscal year.[86] However, this aggregate wealth masks an ever-expanding fissure with local revenue generation. During the 2024 fiscal year, the NFL distributed approximately $432.6 million in national revenue to every member club.[87] While this national baseline ensures that every club is solvent throughout the fiscal year, the variance in local revenue determines the actual financial health of the NFL ecosystem.

In 2024, the Dallas Cowboys generated an estimated $1.2 billion in total revenue, which was largely driven by over $800 million in local revenue from AT&T Stadium in Arlington and unrivaled sponsorship deals.[88] In stark contrast, franchises such as the Cincinnati Bengals, Los Angeles Chargers, and Arizona Cardinals generated revenues closer to the $550 million range.[89] Since every team receives the same ~$432 million national check, this implies that the Bengals and Chargers are generating local revenue of approximately $120 to $150 million, a mere fraction of what the top quartile earns. This stagnation creates an "Efficiency Subsidy," where high-revenue teams end up effectively subsidizing the labor costs of low-revenue teams, as the latter rely on the national check to cover the Salary Cap while contributing minimal value to the aggregate AR pool which determines the Cap.

This market failure also has an incentive dynamic that maps cleanly onto Arthur Laffer's well-known framework: when the effective rate on incremental production crosses a specific high threshold, the economic effect can overwhelm the arithmetic effect, shrinking the base that generates total returns.[90] With the League's

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[86] Ben Fischer, *Sources: NFL revenue passes $23B in latest FY*, SPORTS BUS. J. (Apr. 10, 2025), https://perma.cc/DU6N-PYTM.

[87] Steve Megargee, *Packers' profits from operations rise 39.3% as they get $432.6 million from NFL in national revenue*, ASSOCIATED PRESS (July 23, 2025), https://perma.cc/S6XB-VCUP.

[88] Justin Teitelbaum, *The NFL's Most Valuable Teams 2024*, FORBES (Aug. 29, 2024), https://archive.is/C6Cb4; Kurt Badenhausen, *Most Valuable NFL Teams 2024: Cowboys First to Top $10 Billion*, SPORTICO (Aug. 13, 2024), https://archive.is/e906m.

[89] Michael Ozanian, *CNBC's Official NFL Team Valuations 2024: Here's How the 32 Franchises Stack Up*, CNBC (Sept. 5, 2024), https://perma.cc/6UPJ-NHNH.

[90] Arthur B. Laffer, *The Laffer Curve: Past, Present, and Future*,

revenue distribution system, heavy redistribution of marginal upside can function as a high implicit marginal tax on incremental local revenue generation making underinvestment a rational strategy. Over time, that underinvestment suppresses the All Revenues pool that drives the Salary Cap, harming both players and growth-oriented owners alike.

3. The "Profit-Taking" Owner Model vs. The "Growth" Owner Model

The economic disparity presented above has divided the ownership class into two distinct factions: (1) "Growth Owners," such as Jerry Jones of the Dallas Cowboys and Stan Kroenke of the Los Angeles Rams, view their clubs as premium asset classes and invest heavily in their facilities to expand enterprise value. On the other hand, "Profit-Taking Owners" operate on a model of austerity, relying on the "socialist" nature of national revenue sharing to maintain profitability while minimizing their local overhead.

This divide was illustrated clearly in April 2024, when voters in Jackson County, Missouri, overwhelmingly rejected a sales tax measure which would have funded renovations for Arrowhead Stadium, where the Kansas City Chiefs play.[91] Despite the team's recent on-field success, the ownership's reliance on public subsidies rather than private capital is a perfect exemplification of the "Dependent" model. As the Supreme Court recognized in *American Needle*, NFL teams are "separate economic actors pursuing separate economic interests."[92] When a Profit-Taking Owner refuses to modernize their stadium, or even fails to secure the capital to do so, they are artificially suppressing the total AR pool. This "free riding" lowers the Salary Cap for every team, penalizing both players and Growth Owners alike.

B. The Solution: Imputation of Median Revenue

To correct the structural incentives that currently reward stagnation, the Union must propose a fundamental adjustment to how nthe Salary Cap is calculated. An empirical analysis of the NFL's financial data is able to confirm that under the current revenue-sharing model, "being a low-cost provider is more profitable than

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Backgrounder No. 1765, at 1-2 (HERITAGE FOUND. June 1, 2004).

[91] Associated Press, *Missouri Voters Reject Stadium Tax for Royals and Chiefs*, ESPN (Apr. 3, 2024), https://perma.cc/46F9-8QYU.

[92] *Am. Needle*, 560 U.S. at 196-97.

increasing player salaries in an attempt to win additional games."[93] The solution is not to demand a higher percentage of existing revenue, but to alter the underlying accounting of "All Revenues" to eliminate the viability of the "low-cost provider" model.

1. The Mechanics: "If You Earn Below X, You Count as Y."

Currently, the NFL shares approximately 70% of its overall revenues, which is a higher percentage than any other major North American sports league.[94] While this is intended to promote competitive balance, this extensive sharing creates a perverse incentive: because the marginal revenue generated by winning is shared with the rest of the League, the optimal strategy for a profit-maximizing owner is often to spend as little as possible on player talent.[95] The Imputed Local Revenue Rule would mandate that, for the purposes of calculating the Salary Cap, every NFL club's "Local AR" shall be the greater of: (a) their actual AR, or (b) the prior year's league-wide median Local AR.

For example, if the league median for local revenue is $300 million, and a franchise only generates $150 million, the Salary Cap formula would "impute" an additional $150 million to that franchise's ledger, which raises the total AR pool, thereby raising the Salary Cap. This team would then be required to spend to the "Cash Spending Floor," which is 90% of the Salary Cap based on this higher cap number. However, since they didn't actually earn that revenue, the cash must come from the owner's profit margin, personal wealth, or debt.

2. Forcing Reinvestment or Selling Equity

This mechanism ends up fundamentally altering the franchise ownership's economic calculus. As noted in sports management literature, high-investment owners, such as Jerry Jones of the Dallas Cowboys, already express frustration that they end up carrying the burden of maintaining and growing the League's brand while others "free ride" on that value.[96] Under the current system, owners such as

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[93] Daniel A. Rascher, et al., *Free Ride, Take It Easy: An Empirical Analysis of Adverse Incentives Caused by Revenue Sharing*, 25 J. SPORT MGMT. 373, at 373 (2011).

[94] *Id.* at 374.

[95] *Id.* at 377 (finding that "revenue sharing is not the optimal mechanism to maximize overall league financial success" as it encourages owners to present a "consistently inferior (underpaid) on-field product").

[96] *Id.* at 387 (noting that "some teams are primarily carrying the burden of maintaining and growing the league's brand . . . while others are harming, or free riding on, the brand").

the Spanos family or Mike Brown can operate profitably by minimizing overhead (e.g., stadium staffing, marketing, facility upgrades) and live off the national revenue check.[97] The Imputed Revenue Rule destroys this "Profit-Taking" model by turning the "Efficiency Subsidy" into a penalty.

Faced with a Salary Cap floor calculated based on a median revenue standard that they are failing to meet, a low-investment owner faces a binary choice: (1) Reinvestment, where the owner invests capital into the local market, either through stadium modernization, premium seating expansion, or marketing, to actually generate the median revenue, thus aligning their financial interests with the "Growth Owners"; or (2) a Market Exit, where if the owner lacks the liquidity to fund the "Financial Squeeze" or the ambition to grow the business, they are forced to sell equity or the entire franchise to a capitalized ownership group that can and will optimize the asset. By penalizing the "low-cost provider" strategy, the Union ensures that all 32 franchises are contributing equally to the maintenance of the League's labor force and brand equity, effectively ending the era where high-investment owners subsidize the austerity of the bottom quartile.[98]

C. The "Whip Count": Breaking the Ownership Bloc (The 32 Votes)

To ratify this amendment, the Union will not be able to win a unanimous vote. Instead, it must fracture this massive ownership bloc by aligning with the "Architects" to pressure the "Dependents." This strategy relies on identifying the sharp divergence in economic incentives among the 32 clubs. Seeing as revenue sharing can create a Laffer-style "prohibitive range" for incentives, which dilute the marginal return on local reinvestment, the ownership vote will track who benefits from the subsidy versus who bears its opportunity costs.

1. The "Architects" (11 Votes – Likely YES)

These are the "Growth Owners." They control higher-revenue franchises, invest heavily in facilities and real estate, and view the NFL as a premium asset class. They are frustrated by the "Free Rider" problem and believe that underinvestment by their peers ends up devaluing the league's brand and broadcasting rights. They will support imputation, as it forces competitors to spend money. This

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[97] *Id.* at 374 (explaining how the "decision to decrease operational expenses" allows a free rider to reap larger profits than other teams).

[98] *Id.* at 387 (concluding that "from a league's perspective . . . allowing teams to reduce on-field quality to [save costs] can be detrimental").

then reduces the competitive advantage of "cheap" owners while raising the League's overall valuation.

a. Jerry Jones (Dallas Cowboys)**—VERDICT: STRONG YES**

The Cowboys are valued at $13 billion, and are the first sports franchise to cross the $10 billion threshold.[99] They lead the league in revenue and operating income, at ~$1.2 billion and $564 million respectively.[100] Jones revolutionized the NFL's economic model in 1996 by suing the league to control his franchise's merchandise and stadium's sponsorship rights.[101] He controls The Star in Frisco and AT&T Stadium, generating massive unshared revenue.[102]

Jones has had a long-standing disdain for the "socialist" revenue sharing, which allows low-effort owners to profit off his hard work. In 2018, he famously stated that he would not sell the team for less than $10 billion.[103] He views the "Profit-Takers" as dead weight. Supporting imputation allows him to force his rivals to spend cash they do not have, potentially forcing sales to bring in more dynamic owners who align with his vision of growth.

Jones would likely serve as the coalition leader.

b. Stan Kroenke (Los Angeles Rams)**—VERDICT: Yes**

The Rams are valued between $7.79 billion and $10.5 billion, and are the second most valuable franchise in the NFL.[104] Kroenke privately financed the $5 billion SoFi Stadium complex.[105] He creates substantial revenue streams from real estate, premium seating, and hosting major events outside of Rams games, including the Super

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[99] *See* Teitelbaum, *supra* note 88.

[100] *See* Badenhausen, *supra* note 88.

[101] *Nat'l Football League Props., Inc. v. Dallas Cowboys Football Club, Ltd.*, 922 F. Supp. 849, at 851-52 (S.D.N.Y. 1996).

[102] Brandon George, *Building his own house: Jerry Jones' AT&T Stadium, Star in Frisco the foundation of his Cowboys legacy*, DALL. MORNING NEWS (July 26, 2017), https://perma.cc/EZL4-FVW5.

[103] Darin Gannt, *Jerry Jones: Wouldn't sell Cowboys for less than $10 billion*, PROFOOTBALLTALK (Nov. 19, 2018), https://perma.cc/A6VP-7KDP.

[104] *See* Badenhausen, *supra* note 88; Justin Teitelbaum, *The NFL's Most Valuable Teams 2025*, FORBES (Aug. 28, 2025), https://archive.is/8zxzv (listing annual team revenues of $764 million for the Los Angeles Rams and $593 million for the Los Angeles Chargers).

[105] Nathan Fenno & Sam Farmer, *A Turbulent Path: How Stan Korenke and the NFL turned SoFi Stadium into a $5-billion reality*, LOS ANGELES TIMES (Sept. 4, 2020), https://perma.cc/7YCG-3H6R.

Bowl, Taylor Swift concerts, and the Olympics in 2028.[106]

Kroenke has strong incentives to vote yes because he is a longtime real estate developer and has positioned the Rams, along with SoFi Stadium, as the anchor of Hollywood Park, a nearly 300-acre, year-round mixed-use sports and entertainment district.[107] He is also effectively the Chargers' landlord: a Kroenke-controlled entity controls SoFi, and the Chargers play there under a lease reported as $1 per year; the Chargers also generate materially less annual team revenue than the Rams.[108] Reporting has described Rams leadership as resentful that the Chargers share the Los Angeles market while contributing comparatively less, especially when the Rams are perceived as carrying more of the financial and brand-building burden.[109] Imputation would force the Chargers, a "Dependent"

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[106] *See* Kelsi Borland, *Inglewood's Transformation: How an NFL Stadium Brought the City Back from the Brink of Bankruptcy*, URB. LAND INST. L.A. (Oct. 18, 2023), https://perma.cc/Z926-ZJGL (describing Hollywood Park as a mixed-use district including housing, office, retail, and a hotel, developed by a joint venture involving the Kroenke Group); John Seabrook, *How the Sports Stadium Went Luxe*, THE NEW YORKER (Dec. 1, 2025), https://perma.cc/75CM-G5SH; *Los Angeles to Host Super Bowl LVI in February 2022 at SoFi Stadium*, L.A. RAMS (Feb. 9, 2021), https://perma.cc/J836-8J3U; *Taylor Swift | The Eras Tour*, SOFI STADIUM (Nov. 4, 2022), https://perma.cc/QNX7-YLUM (announcing Taylor Swift's Eras Tour dates at SoFi Stadium); *2028 Stadium*, LA28, https://perma.cc/T3JJ-KBC5 (last visited Dec. 19, 2025) (stating the venue will host Olympic swimming and co-host the Olympic Opening Ceremony and Paralympic Opening Ceremony).

[107] *See Stan Kroenke*, COLO. RAPIDS, https://perma.cc/GF8F-P4XK (last visited Dec. 19, 2025) (describing Kroenke as the owner of Kroenke Group, "a private real estate investment and development company," and "one of the nation's leading real estate developers); *About Us*, HOLLYWOOD PARK, https://perma.cc/KP6A-TMW9 (last visited Dec. 19, 2025) (describing Hollywood Park as a ~300 acre destination built by Rams owner and "anchored by" SoFi Stadium); Borland, *supra* note 106; Rory Carroll, *Hollywood Park Studios to serve as broadcast hub for LA Olympics*, REUTERS (May 13, 2025), https://perma.cc/H9FC-9VAK (quoting Kroenke describing his vision for Hollywood Park as "a city within a city" combining media, tech, and entertainment).

[108] *See* Arash Markazi, *Chargers aren't the only NFL team that rents*, LOS ANGELES TIMES (Aug. 7, 2019), https://perma.cc/6PDG-TRGQ (reporting that the Inglewood stadium entity is controlled by Rams owner Stan Kroenke and that the Chargers pay $1 per year to rent the stadium, and noting Kroenke receives the project's non-NFL revenues); Teitelbaum, *supra* note 104.

[109] *See Tense Relationship Between Rams, Chargers Looms Over SoFi Stadium*, SPORTS BUS. J. (Nov. 22, 2019), https://perma.cc/UM39-3TTS (summarizing

tenant to pay up or exit, benefitting Kroenke's control of the Los Angeles market.

c. Robert Kraft (New England Patriots)**—VERDICT: Yes**

Forbes values the New England Patriots at approximately $9 billion as of August 2025 and reports $762 million in annual revenue, placing the club among the league's highest revenue franchises.[110] Kraft's local-revenue model is also unusually developed, as the Patriots' official team biography describes Gillette Stadium as privately financed, and the Kraft Group describes Patriot Place as a mixed-use development extending the stadium, designed to generate year-round dining, hospitality, and entertainment revenue.[111]

These facts support classifying Kraft as a "League Architect." During the 2011 CBA negotiations and lockout, reporting and negotiation analysis described Kraft as playing a key role in moving owners toward compromise that ended the labor impasse.[112]

Kraft has incentives to favor reforms that reduce league-wide underinvestment and preserve the product's long-run commercial value because his franchise's returns are tied not only to local monetization but also to league-wide brand health and continued labor peace.[113]

d. The Mara & Tisch Families (New York Giants)**—VERDICT: Yes**

The New York Giants are among the highest-valued franchises, with public valuation reporting in 2025 placing the club's value at

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reporting that the Rams are "resentful of carrying the financial burden of two teams" and describing concerns about the Chargers' long-term viability in the Los Angeles market); Frank Pingue, *Two teams sharing Los Angeles market cause for concern, experts say*, REUTERS (Jan. 12, 2017), https://perma.cc/983F-DLRW (reporting analysts' concerns that Los Angeles may be a challenging two-team NFL market).

[110] Teitelbaum, *supra* note 104.

[111] *Robert Kraft*, NEW ENGLAND PATRIOTS, https://perma.cc/V4X4-Y2L5 (last visited Dec. 19, 2025) (describing Gillette Stadium as "privately-financed"); *Patriot Place*, THE KRAFT GRP., https://perma.cc/TZ7Z-HA54 (last visited Dec. 19, 2025) (describing Patriot Place as an entertainment complex developed as an extension of Gillette Stadium).

[112] *4 Negotiation Tactics Robert Kraft Used to End the NFL Lockout*, PROGRAM ON NEGOT. AT HARV. L. SCH. (Dec. 24, 2018), https://perma.cc/8K3Q-4K25; *see also* John Ourand, *New book: Robert Kraft made his bones in 2011 CBA, media talks*, SPORTS BUS. J. (Sept. 30, 2021), https://perma.cc/Y7ZX-J7B9.

[113]

approximately $10.1 billion.[114] The Giants work in the New York media market and play at MetLife Stadium, a venue developed as a 50/50 joint venture between the Jets and Giants and was described at inception as privately financed.[115] MetLife's own stadium materials emphasize a revenue-optimized design, with substantial premium inventory including 10,000+ club seats and 200+ suites.[116]

The Giants' ownership is likely to vote yes, as they have structural incentives to support reforms that reduce the probability of "low-cost provider" strategies and force league-wide modernization because the club is positioned to compete on local monetization rather than on austerity.[117]

e. Woody Johnson (New York Jets)**—VERDICT: Yes**

In August 2025, the New York Jets, according to *Forbes*, were valued at approximately $8.1 billion.[118] Woody Johnson is a longtime sports owner and businessman, and during the first Trump administration, he served as the U.S. Ambassador to the United Kingdom.[119] The Jets also operate in the New York market and also play at MetLife, as described earlier for the Giants.[120]

Similar to the Giants, Johnson is likely to vote yes, as large-market clubs have incentives to support reforms that reduce the profitability of chronic underinvestment and better align cap revenues with league-wide revenue potential.[121]

f. Jeffrey Lurie (Philadelphia Eagles)**—VERDICT: Yes**

Forbes values the Philadelphia Eagles at approximately $8.3 billion

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[114] Teitelbaum, *supra* note 104.

[115] *Jets, Giants Unveil Design, Break Ground on Stadium*, N.Y. JETS (Sept. 5, 2007), https://perma.cc/B8KH-4EV6 (describing MetLife's predecessor project as "privately financed" via a "50-50 joint venture").

[116] *About MetLife Stadium*, METLIFE STADIUM, https://perma.cc/FVW8-YCNW (last visited Dec. 19, 2025) (listing stadium "Fast Facts," including club seating and suite numbers).

[117] J.C. Tretter, *NFL Economics 101*, NFLPA (Oct. 27, 2021), https://perma.cc/MPH8-VTRP; *see also 2020 CBA*, *supra* note 1, art. 12, § 1(a)(i), (iii), (c)(i), at 69, 96.

[118] Teitelbaum, *supra* note 104.

[119] *People—Department History | Robert Wood Johnson IV*, U.S. DEP'T OF STATE, https://perma.cc/L68F-RXF5 (last visited Dec. 19, 2025); *Robert Wood "Woody" Johnson IV*, LUPUS RSCH. ALL., https://perma.cc/2RZG-2SPE (last visited Dec. 19, 2025).

[120] N.Y. JETS, *supra* note 115.

[121] *2020 CBA*, *supra* note 1, art. 12, § 1(a)(i), (iii), (c)(i), at 69, 96.

and reports $668 million in annual revenue, per 2025 valuations.[122] Credible reporting describes Lurie as investing ahead of the curve in analytics and information infrastructure, with the Eagles looked at as a league leader in data-driven operations.[123] The franchise has also heavily invested in stadium improvements at Lincoln Financial Filed, including major "revitalization" work, such as video and ribbon boards, sound system upgrades, club renovations, etc.[124] National reporting has also described the Eagles' extensive use of "void" years to defer cap charges and to keep competitive windows open.[125]

Lurie is likely to vote yes, as owners that consistently spend cash and use financial engineering to build competitive rosters have an incentive to support such reforms that would expand the cap-relevant revenue base and reduce the ability of low-investment club s to free-ride on league distributions.[126]

g. David Tepper (Carolina Panthers)**—VERDICT: Yes**

Panthers owner David Tepper is a hedge-fund principal at Appaloosa Management and is widely reported to have a net worth in the ~$20 billion range.[127] He purchased the Panthers in 2018 for $2.275 billion, which was at the time an NFL-record transaction.[128] In 2024, Tepper Sports & Entertainment and the City of Charlotte, NC advanced a renovation framework for Bank of America Stadium that

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[122] Teitelbaum, *supra* note 104.

[123] Olivia Reiner, *Division in Numbers*, PHILADELPHIA INQUIRER (Sept. 9, 2021), https://archive.is/85Aw3; Tim McManus, *Eagles Provide Roadmap to Analytics-Driven Future of NFL*, ESPN (Sept. 11, 2019), https://perma.cc/FP6Z-WV7W.

[124] *Stadium Revitalization Project: The Details*, PHILA. EAGLES (June 8, 2013), https://perma.cc/38NK-A58G; *Lincoln Financial Field Improvements*, TURNER CONSTR. CO, https://perma.cc/68LA-ANKU.

[125] Andrew Beaton, *The Financial Hack That Built the Eagles Into the NFL's Super Team*, WALL ST. J. (Sept. 4, 2025), https://www.wsj.com/sports/football/nfl-void-years-salary-cap-philadelphia-eagles-salary-5839a2da (last visited Dec. 19, 2025).

[126] *2020 CBA*, *supra* note 1, art. 12, § 1(a)(i), (iii), (c)(i), at 69, 96.

[127] *See* Cork Gaines, *The 10 richest sports owners are worth a combined $549 billion. Here's how they made their fortunes.*, BUS. INSIDER (May 31, 2024), https://perma.cc/E2EZ-EHXS.

[128] *See* James Palmer, *With Denver Broncos sale approved by NFL owners, franchise begins new era amid 'so much buzz'*, NFL.COM (Aug. 9, 2022), https://perma.cc/24Q6-SWPV; *see also* David Newton, *Sale of Panthers franchise to David Tepper finalized*, ESPN (Jul. 9, 2018), https://perma.cc/ZV5W-Y3NS.

planned $650 million in public funding tied to tourism-tax revenues.[129]

An owner with high liquidity and a demonstrated willingness to pursue public-private stadium capital is poised to prefer reforms that: (1) raise required reinvestment thresholds; and/or (2) reduce the relative advantage of "low-input" ownership strategies.

h. Josh Harris (Washington Commanders)**—VERDICT: Yes**

In 2023, the NFL approved the sale of the Commanders to a Josh Harris-led group for $6.05 billion.[130] In business press, Harris is profiled as the co-founder of Apollo Global Management, and as a private equity investor with a long track positive track record in terms of scaling value across portfolio assets.[131]

Since the acquisition, the franchise utilized multiple revenue levers, pursuing commercialization and venue strategy, including an eight-year stadium naming-rights agreement effective the 2024 season.[132] Separately, the Washington, D.C. government and the franchise announced a major stadium and development project, aimed at returning the team to D.C., with the project's price tag reportedly being in the multibillion dollar range.[133]

A private-equity buyer at a record valuation has a strong directional incentive to support economic reforms that expand controllable local revenue streams and enhance leaguewide enterprise value, even if those reforms increase the cost of "status quo" ownership.

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[129] *See* Mary Ramsey, *Should Charlotte pay for renovations at Bank of America Stadium? 'Tough' call, says expert*, CHARLOTTE OBSERVER (Jun. 5, 2024), https://perma.cc/MBA9-L32T; *see also Bank of America Stadium Renovations | Carolina Panthers*, CAROLINA PANTHERS, https://perma.cc/5W5M-8QLC (last visited Dec. 19, 2025).

[130] *See* John Keim, *NFL owners approve $6.05B sale of Commanders to Harris group*, ESPN (July 20, 2023), https://perma.cc/GNK6-G4M3; *see also NFL Owners Approve Sale of Washington Commanders to Josh Harris Group*, NFL.COM (July 20, 2023), https://perma.cc/X3XX-3VAV.

[131] *The Josh Harris Playbook: Building Cultures of Excellence in Business and Sports*, INSIDE THE STRATEGY ROOM (MCKINSEY & CO. Oct. 6, 2025), https://perma.cc/3FXM-P4MF.

[132] *Commanders ink Northwest Federal to stadium naming-rights deal*, REUTERS (Aug. 27, 2024), https://archive.is/ySVaW (reporting eight-year naming-rights agreement effective for the 2024 season).

[133] *See Washington returning to nation's capital after new stadium deal*, REUTERS (Apr. 28, 2025), https://archive.is/gZqIq (reporting deal framework for a multibillion-dollar stadium and surrounding development on the RFK site and describing public contribution and anticipated timeline).

i. Rob Walton & Penner Family (Denver Broncos)**—VERDICT: Yes**

The NFL owners approved the Walton-Penner group's purchase of the Denver Broncos following a $4.65 billion bid.[134] The wealth of the Walton family, which founded Walmart, has been reported to be in the hundreds of billions, making the group unusually liquid in contrast to most NFL ownership structures.[135]

A liquidity-rich ownership group likely has comparatively low sensitivity to reforms that increase required spending or that create capital commitments.

j. Arthur Blank (Atlanta Falcons)**—VERDICT: Yes**

Arthur Blank, who co-founded Home Depot, led the Atlanta Falcons' move into Mercedes-Benz Stadium, a project widely reported at approximately $1.5 billion in cost.[136] The Falcons publicly positioned the stadium as an experience-driven revenue platform, including the widely documented "fan-first" concession pricing model, featuring $2 core items and $5 domestic beer, designed to increase volume and improve the fan's overall experience at the stadium.[137]

Blank would likely vote yes, as his stadium-centric strategy is the most consistent with reforms that reward, or at least those that do not penalize, high-effort ownership investment and discourage persistent underinvestment that can degrade the league product.

k. Mark Davis (Las Vegas Raiders)**—VERDICT: Likely Yes**

The Raiders' Las Vegas stadium project was financed through a culmination of substantial public funding, NFL/team contributions,

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[134] Jeff Legwold, *Denver Broncos reach sale agreement; price tag is $4.65 billion, sources say*, ESPN (Jun. 8, 2022), https://perma.cc/WC8J-C2D4; Jeff Legwold, *NFL owners unanimously approve $4.65 billion sale of Denver Broncos to Walton-Penner group*, ESPN (Aug. 9, 2022), https://perma.cc/Q3SM-FMAY.

[135] *See* Chloe Berger, *The Walton family is the world's richest as soaring Walmart shares drive the heirs' net worth to $432 billion*, FORTUNE (Dec. 12, 2024), https://perma.cc/YM2Q-4WDL.

[136] *See* Doug Richards, *Rise up: Officials say Falcons stadium cost is up to $1.6 billion*, 11ALIVE.COM (Jun. 16, 2016), https://perma.cc/9D3R-6A5B; *see also Arthur Blank – Atlanta Falcons*, FORBES, https://archive.is/CPM0N.

[137] *See MB Stadium Announces Fan-First Menu Pricing*, ATLANTA FALCONS (May 16, 2016), https://perma.cc/KL5K-P7KJ; *see also* Darren Rovell, *Falcons to offer lowest concession prices in major team sports in 2017*, ESPN (May 16, 2016), https://perma.cc/JJU4-G34G.

and related financing; reporting described a package including $750 million in public funds and an NFL G-4 loan component, among other financing sources.[138] Post relocation, *Sportico* reported the Raiders led the NFL for ticket revenue in the 2021 season, generating $119 million.[139]

In 2024, NFL owners also unanimously approved Tom Brady's acquisition of a 5% minority stake in the Raiders.[140] Reporting also indicated that Mark Davis agreed in principle to sell an additional 15% to Egon Durban and Michael Meldman (7.5% each).[141]

Given that (1) the Raiders have demonstrated their ability to generate premium local revenues in Las Vegas, and (2) the ownership's willingness to monetize minority equity, Davis could be aligned with reforms that increase the payoff to local-revenue maximization and reduce the attractiveness of persistent underinvestment elsewhere.

2. Group B: The "Dependents" (8 Votes – Likely NO)

These owners have the strongest incentive to oppose imputation, as the NFL's economic structure already supplies a large, relatively stable baseline via shared national revenue, while key labor-cost restraints are calculated off "All Revenues" under the CBA.[142] An imputed local-revenue rule would functionally convert that baseline into a floor-backed obligation where you either spend or dilute equity, which is the most threatening to clubs that (1) lag in local monetization, (2) operate with thinner margins, or (3) have been historically criticized by players themselves for their austerity in

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[138] *See* Richard N. Velotta, *Raiders finalize $1.8B deal with Las Vegas Stadium Authority*, LAS VEGAS REVIEW-JOURNAL (Mar. 28, 2018), https://perma.cc/3BNX-QLCJ; *see also* Riley Snyder, Jackie Valley, *A $650 million secret: Why are the Raiders and Bank of America keeping loan details private?*, NEVADA INDEPENDENT (Apr. 16, 2017), https://perma.cc/ZT8J-G7UW; *Raiders secure financing for potential Las Vegas stadium*, NFL.COM (Mar. 17, 2017), https://perma.cc/5Q5E-B4RN.

[139] *Report: Las Vegas Raiders lead NFL in ticket revenue*, KSNV NEWS (Jul. 19, 2022), https://perma.cc/7CYL-42SX.

[140] *NFL owners approve Tom Brady's bid to become limited partner of Las Vegas Raiders*, NFL.COM (Oct. 15, 2024), https://perma.cc/LG3A-PHQ8.

[141] Ben Fischer, *Silver Lake's Durban has deal for stake in Raiders*, SPORTS BUS. J. (Nov. 20, 2024), https://perma.cc/FHA3-NNK3 (reporting deal in principle for Durban and Meldman to acquire 7.5% each, subject to NFL rules and approvals).

[142] Megargee, *supra* note 87; *2020 CBA*, *supra* note 1, art. 1, § 1 (definition of "All Revenues"); *2020 CBA*, *supra* note 1, art. 12, § 6 (calculation of player cost amount and Salary Cap).

facilities and benefits.

a. Mike Brown (Cincinnati Bengals) and Michael Bidwill (Arizona Cardinals)

These two owners, and their teams, fit that incentive profile most cleanly. The NFLPA's team report cards continue to reflect that Cincinnati has received failing marks in categories such as "treatment of families" and "food/cafeteria," with players describing family treatment in especially negative terms.[143] Similarly, the Cardinals' NFLPA report card results stated that they were the only club charging players for dinner at the facility[144], which is exactly the cost-minimization fact pattern that makes an imputed-revenue spending floor politically and financially unattractive to these owners.

b. Dean Spanos (Los Angeles Chargers) and Glazer Family (Tampa Bay Buccaneers)

These families can be framed more narrowly and defensibly as "dependents" for different reasons than them being "broke." The Chargers are a tenant in SoFi Stadium, and per reporting on the Rams-Chargers stadium arrangement, pay a nominal rent while receiving a defined share of certain stadium revenues, meaning that they participate in the market upside of SoFi without controlling the full local monetization stack the way that Kroenke does.[145] The Buccaneers are also frequently described as operating within a public-stadium framework, rather than owning a real-estate district like Kroenke, which makes revenue-sharing stability more valuable and an imputed local-revenue "spend mandate" more painful.[146]

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[143] *Cincinnati Bengals Report Card 2024*, *supra* note 57; *see also* Molly Schramm, *NFLPA Report Card: Bengals Once Again Rank Lowest in NFL for Treatment of Families, Cafeteria and Dietitian,* WCPO (Feb. 26, 2025), https://www.wcpo.com/bengals-nflpa-report-card-2025.

[144] *Arizona Cardinals Report Card 2023*, *supra* note 56.

[145] *See, e.g.*, Markazi, *supra* note 108.

[146] *See About Us*, TAMPA SPORTS AUTHORITY, https://www.tampasportsauthority.com/#about-tsa (last visited Dec. 19, 2025) (outlining that the TSA was established as a Independent Special District under Florida state law); *see also Tampa Sports Authority*, RAYMOND JAMES STADIUM, https://perma.cc/95Z6-A4ZF (outlining that the Tampa Sports Authority is the manager of Raymond James).

c. Amy Adams Strunk (Tennessee Titans), Shad Khan (Jacksonville Jaguars), Sheila Ford Hamp (Detroit Lions), the McCaskey family (Chicago Bears)

These owners are best grouped together as "stadium and market constrained," even if some are otherwise healthy. Nashville's new Titans stadium deal has been widely reported as involving a very large public contribution of around $1.26 billion tied to a broader redevelopment plan, which makes near-term cash discipline a rational option until the new building materially expands premium inventory and year-round event revenue.[147] Jacksonville has also pursued stadium redevelopment as a core value driver, and the league has expanded clubs' ability to play "home" games internationally over multi-year windows, underscoring how dependent small-market clubs can be on structural revenue design choices instead of just pure on-field "effort."[148] Chicago and Detroit similarly illustrate the "fixed local ceiling" problem, where Soldier Field is the NFL's smallest stadium by capacity, and reporting continues to focus on Chicago's ongoing stadium strategy and lease realities.[149]

With this information, these owners will have a predictable voting preference, where they will preserve a system where shared revenue smooths downside risk and keeps labor-cost growth linked to leaguewide medians, not a median-imputed local figure that penalizes clubs for structural constraints and/or deliberate low-

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[147] *See* Teresa M. Walker, *Tennessee Legislature Approves Public Funding for New Titans Stadium*, ASSOCIATED PRESS (Apr. 27, 2023), https://apnews.com/article/nfl-tennessee-titans-new-stadium-83e5e8ef8b41d097fca5a8f16983d46d (reporting on the magnitude/structure of the public contribution); *New Stadium*, TENNESSEE TITANS, https://www.tennesseetitans.com/new-stadium/ (last visited Dec. 19, 2025) (press materials on the stadium agreement and public/private contributions).

[148] *See NFL owners approve Jaguars' 'stadium of the future' set to open in 2028*, NFL.COM (Oct. 15, 2024), https://www.nfl.com/news/nfl-owners-approve-jaguars-stadium-of-the-future-set-to-open-in-2028; *see also NFL Expands International Games in 2025–27*, NFL.COM (May 21, 2024), https://www.nfl.com/news/nfl-expands-international-games-in-2025-27.

[149] *See* Patrick Finley and Mitchell Armentrout, *Bears looking past Arlington Heights for possible stadium sites, including Northwest* Indiana, WBEZ CHICAGO (Dec. 18, 2025), https://www.wbez.org/sports/2025/12/18/bears-stadium-arlington-heights-kevin-warren-shift; *see also* Courtney Cronin, *Source - Chicago Bears plan new stadium south of Soldier Field*, ESPN (Mar. 11, 2024), https://www.espn.com/nfl/story/_/id/39704677/source-bears-planning-new-stadium-south-soldier-field.

investment strategies.[150]

3. Group C: The "Swing Votes" (13 Votes – The Battleground)

These owners are not structural "dependents," but they are also not automatic "architects." They tend to be: (1) disciplined, sometimes conservative operators who can be moved by reputational pressure and player-facing conditions, or (2) legacy governance-minded figures that will resist "big market vs. small market" framing but could respond to a "partnership/minimum standards" narrative about protect the League's product and integrity.[151]

a. Clark Hunt (Kansas City Chiefs)

Hunt is a swing vote because the club's on-field success does not translate into unconditional "spender" behavior. On the 2024 NFLPA Report Card for the Chiefs, their players graded ownership poorly (at an "F-minus"), stating further that the club did not follow through on a promised locker room renovation after the 2022 season.[152]

Hunt's position becomes more complicated by the 2024 Jackson County vote rejecting a stadium sales-tax measure that would have supported, among others, Arrowhead renovations, making facilities and funding a live public issue rather than existing as a purely internal talking point.[153] The best play is to frame Hunt as benefitting from league-wide economic stability while falling short on baseline reinvestment standards for working conditions, an argument grounded in the NFLPA report card and the club's documented renovation nonperformance.[154]

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[150] *2020 CBA*, *supra* note 1, art. 12, § 6 (calculation of player cost amount and Salary Cap).

[151] John Vrooman, *The Economic Structure of the NFL*, *in* THE ECONOMICS OF THE NATIONAL FOOTBALL LEAGUE: THE STATE OF THE ART 7, at 21 (K.G. Quinn ed., 2012).

[152] NFL Players Ass'n, *Kansas City Chiefs Report Card 2024* (Feb. 28, 2024), https://nflpa.com/kansas-city-chiefs-report-card-2024 (last visited Dec. 16, 2025).

[153] *See* Celisa Calacal, *Jackson County Voters Reject Stadium Sales Tax That Would Fund New Royals Ballpark*, KCUR (Apr. 2, 2024), https://www.kcur.org/politics-elections-and-government/2024-04-02/royals-chiefs-stadium-sales-tax-question-1-results-jackson-county-kansas-city-election.

[154] *Kansas City Chiefs Report Card 2024*, *supra* note 152.

b. Art Rooney II (Pittsburgh Steelers)

Rooney represents the "institutionalist" swing vote, where he is culturally and structurally aligned with the NFL's long-running "league-think" model, but that same governance instinct can be leveraged if the proposal is not framed as redistributing from "haves" to "have-nots," but instead as preventing free-riding and reputational drag by clubs that underinvest in core infrastructure.[155]

c. Green Bay Packers (Packers governance as a model vote)

The Packers are likely the easiest "Yes" vote amongst the Swing votes as it is structurally unlike any other NFL club: they are a publicly owned, non-profit corporation; shareholders receive no dividends; and the club is governed through a board, rather than through an owner.[156] Since the Packers publish their annual finances, their numbers provide a citable look into how "local vs. national" revenue actually function: for the fiscal year ending March 31, 2025, reporting described local revenue rising from $251.8 million to $286.4 million and total revenue rising to $719.1 million.[157] That disclosure posture supports the claim that "reinvestment-first" governance is feasible and sustainable within the NFL's economic architecture—without requiring speculative mind-reading about private owners' motives.[158]

d. Other Votes

The remaining battleground includes (i) high-investment owners that have player-facing credibility, such as Minnesota's ownership[159], and (ii) owners/groups that are facing stadium-funding politics that shape their appetite for new spending mandates, such as the Buffalo Bills. In Buffalo, New York State announced a public-private stadium agreement including $600 million from the state and $250 million from Erie County.[160] It also

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[155] Vrooman, *supra* note 151.

[156] *Shareholders*, GREEN BAY PACKERS, https://www.packers.com/community/shareholders (last visited Dec. 19, 2025).

[157] Megargee, *supra* note 87.

[158] *Id.*

[159] *Minnesota Vikings Report Card 2024*, *supra* note 4.

[160] Governor Kathy Hochul, *Governor Hochul Announces Joint Public-Private Agreement to Ensure the Buffalo Bills Remain in New York State* (Mar. 28, 2022), https://www.governor.ny.gov/news/governor-hochul-announces-joint-public-private-agreement-ensure-buffalo-bills-remain-new-york (last

includes "estate/trust" governance situations that often prefer consensus stability, such as Jody Allen functioning as the de facto Seahawks owner since Paul Allen passed away.[161] Finally, there are also real-estate oriented operators who can support reinvestment narratives on "venue-as-product" logic, such as with Stephen Ross, the owner of the Miami Dolphins, who privately funded a $400 million renovation of now-Hard Rock Stadium.[162]

D. Legal Leverage: The "Nuclear Option"

To implement this rule, the Union needs a ¾ vote (24 owners) under the current NFL Constitution and Bylaws, as is required for any amendment that affects revenue sharing.[163] Currently, the "Yes" count is approximately 17-18 votes from Group A and high-investment swing votes. The Union needs to flip 6-7 more votes from Groups C and B. To do this, the NFLPA must make the cost of voting no higher than the cost of voting yes, which requires legal leverage.

1. *American Needle v. NFL*: The Single-Entity Defense Fails

The primary defense the owners make against antitrust lawsuits is the "Single Entity" doctrine, which is the idea that the 32 teams are one business and cannot conspire against themselves. In *American Needle, Inc. v. NFL*, the Supreme Court unanimously rejected this defense.[164]

The Union will draft an antitrust grievance alleging that the current "All Revenue" calculation acts as an illegal conspiracy to suppress wages. In allowing low-revenue teams to "free-ride", they drag down the cap, which in practices, makes the League effectively participate in price-fixing players salaries at a lower rate than a competitive market would bear. This lawsuit would force discovery, and the "Profit-Taking" owners do not want their books opened, as they would reveal their profitability margins and lack of investment.

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visited Dec. 19, 2025).

[161] Jeremy Bergman, *Seahawks chair Jody Allen says team is not for sale right now*, NFL.COM (Jul. 5, 2022), https://www.nfl.com/news/seahawks-chair-jody-allen-says-team-is-not-for-sale-right-now (last visited Dec. 19, 2025).

[162] *Dolphins unveil $400M renovation plan for Sun Life Stadium*, NFL.COM (Jan. 18, 2015), https://www.nfl.com/news/dolphins-unveil-400m-renovation-plan-for-sun-life-stadium-0ap3000000459987 (last visited Dec. 19, 2025).

[163] NAT'L FOOTBALL LEAGUE, Constitution and Bylaws, art. XXV, § 25.1(A) (rev. Sep. 14, 2016).

[164] *Am. Needle*, 560 U.S. at 196-97.

2. *Brady v. NFL*: The Credible Threat of Decertification

In *Brady v. NFL*, the players were able to successfully decertify the Union to sue the league as individual plaintiffs, blocking the 2011 lockout temporarily.[165] In this situation, if the owners were to reject Initiative 3, the NFLPA can threaten to disclaim interest/decertify prior to the next CBA negotiation. Without a Union, the "Non-Statutory Labor Exemption" expires, exposing the entire Salary Cap system to an antitrust attack.

High-investment owners, like those in Group A, want labor peace to protect their $10 billion valuations. They will not allow free-riding owners to trigger a work stoppage or an antitrust war that then threatens the entire Salary Cap structure. The vote would be forced to save the system.

Conclusion: A MANDATE FOR MODERNIZATION

The NFL is no longer a sports league in the ordinary sense, instead, it is an entertainment platform whose long-run value has been tied to the consistency of the on-field product and the credibility of the League's brand promise to fans, media partners, and sponsors. The NFL's current labor economics create a structural mismatch: the Salary Cap is driven by leaguewide "All Revenues," yet the ownership incentives created by revenue sharing allow persistent underinvestment and weak local monetization to remain privately rational for a subset of clubs. The result is not true parity, but an "efficiency subsidy" that lets low-effort strategies depress the cap base and, by extension, player compensation. The League can't credibly market itself as the premium global entertainment product it has become while tolerating a system where the least-invested ownership models exert downward pressure on the entire labor market.

This paper's three initiatives have offered a coordinated fix. Initiative One establishes baseline legal and bargaining leverage by reframing the labor dispute around enforceable rights and modern consent/modernization limits, which ensures that the Union is not negotiating from a purely distributive posture. Initiative Two converts that leverage into durable governance by setting minimum reinvestment and professional workplace standards that prevent "slumlord" operating models from persisting under the Shield. Initiative Three then aligns the cap with modern revenue realities, through an imputed local-revenue mechanism, so owners that maximize and reinvest are not effectively taxed to subsidize chronic underinvestment.

All together, the initiatives are not an attack on small markets, but

[165] *Brady*, 644 F.3d at 661.

rather they are a partnership rule for a 32-team joint venture that protects the product, stabilizes labor peace, and ensures the leaguewide ceiling is no longer set by the lowest-effort quartile.